

ASCII MASTER FLOW – PANEL 1/12: Privacy and cyber twin rail

PRIVACY -> lawful collection, use, retention and redress

CYBERSECURITY -> prevention, detection, response and recovery

SAME BREACH -> two questions and potentially two response chains

DPDP BOARD != CERT-In != NCIIPC != I4C

RULE -> complementary domains are not interchangeable

ASCII MASTER FLOW – PANEL 2/12: DPDP actor chain

DATA PRINCIPAL -> rights-bearing individual

DATA FIDUCIARY -> decides purpose and means

DATA PROCESSOR -> acts for Fiduciary

CONSENT MANAGER -> Board-registered consent interface

BOARD -> specified adjudication; TDSAT hears appeals

ASCII MASTER FLOW – PANEL 3/12: Scope gateway

PERSONAL DATA? -> if no, DPDP personal-data route stops
DIGITAL OR DIGITISED LATER? -> if yes, scope can attach
OUTSIDE INDIA? -> goods or services offered in India test
ANONYMISED / NON-PERSONAL -> not automatically covered
RULE -> identify data class before compliance claim

ASCII MASTER FLOW – PANEL 4/12: Legal status staircase

ENACTED -> parent statute exists

NOTIFIED -> instrument published in Gazette

COMMENCED -> specified provision is in force

STAFFED / ADJUDICATING -> institutional evidence required

ENFORCED -> applicable proceeding or outcome required

ASCII MASTER FLOW – PANEL 5/12: Three-tranche chronology

13 NOV 2025 -> definitions, Board provisions, RTI amendment
ONE YEAR -> s.6(9), s.27(1)(d), rule 4
EIGHTEEN MONTHS -> substantive compliance core and penalties
RULES NOTIFIED -> does not erase deferred dates
DATE CHECK -> re-verify before present-tense writing

ASCII MASTER FLOW – PANEL 6/12: Lawful processing and rights loop

NOTICE -> specified information

CONSENT OR s.7 CERTAIN LEGITIMATE USE -> lawful ground

PROCESSING -> Fiduciary and Processor responsibilities

ACCESS / CORRECTION / ERASURE / GRIEVANCE / NOMINATION

s.15 DUTIES -> rights holder also has statutory duties

ASCII MASTER FLOW – PANEL 7/12: SDF governance stack

GOVERNMENT NOTIFICATION -> creates SDF status

RISK FACTORS -> scale, sensitivity and public consequences

INDIA-BASED DPO -> governance contact

INDEPENDENT AUDITOR + DPIA + AUDITS -> added assurance

TRAP -> large entity is not automatically an SDF

ASCII MASTER FLOW – PANEL 8/12: Sections 16 and 17 matrix

s.16 -> notified restricted destinations; permissive default

SECTORAL RULE -> may impose stricter localisation

s.17(1) -> processing-specific exemptions

s.17(2)(a) -> notified State-instrumentality exemption

RULE -> transfer rule and exemption rule answer different questions

ASCII MASTER FLOW – PANEL 9/12: Consequential amendment fork

s.44(3) -> RTI s.8(1)(j) substituted in immediate tranche
PRIVACY <-> TRANSPARENCY -> contested rights balance
s.44(2) -> IT Act s.43A omission in deferred tranche
LIVE CHANGE != SCHEDULED CHANGE
RULE -> identify parent Act, section and commencement

ASCII MASTER FLOW – PANEL 10/12: Penalty rail

SECURITY-SAFEGUARD FAILURE -> maximum Rs 250 crore

BREACH NOTICE / CHILDREN'S DUTIES -> maximum Rs 200 crore

SDF DUTIES -> maximum Rs 150 crore

CHARACTER -> civil and financial

NOT INCLUDED -> imprisonment or automatic victim compensation

MUST REMEMBER: The DPDP Act separates Data Principal, Data Fiduciary, Significant Data...

ASCII MASTER FLOW – PANEL 11/12: Cyber institution router

CERT-In / MeitY / s.70B -> incident response and directions

NCIIPC / NTRO / s.70A -> notified CII protection

I4C / MHA -> cybercrime coordination, portal and 1930

DATA PROTECTION BOARD -> DPDP compliance adjudication

RULE -> route by function, statute and administrative home

CLOSE DISTINCTION: Consent is not the only lawful route, the Data Protection Board is not...

ASCII MASTER FLOW – PANEL 12/12: Routed PYQ answer spine

2018 -> data-protection report: strengths plus weaknesses

2019 -> GDPR comparator; digital-signature authentication

2024 -> DPDP context, salient features and dated status

BREACH -> privacy compliance plus cyber response

CONCLUDE -> rights, resilience, capacity and status discipline

EVIDENCE LIMIT: MECHANISM / STATUS / CAUSATION: Cite Act/rule/advisory date and status;...